

April 10, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14400
(FIRST REVISION)

EXPIRATION DATE: November 30, 2008

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Ultra Electronics
Alexandria, VA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of air, compressed in a non-DOT specification cylinder described as a accumulator/filter module. The cylinder is for use within the F-35 Joint Strike Fighter. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce. The safety analyses did not consider the hazards and risks associated with use as a component of another device or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.302a(a) and 175.3 in that the use of a non-DOT specification cylinder is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Ultra Electronics dated December 18, 2006 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Air, compressed	2.2	UN1002	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification cylinder described as an accumulator/filter module used within the Pneumatic Power Source of the F-35 Joint Strike Fighter Weapons Pylon. The cylinder is manufactured of 6082-T6 aluminum and the cap is manufactured of Titanium TA11. The cylinder design must meet all applicable aircraft performance requirements of the Joint Strike Fighter program, design qualification testing requirements in accordance with Department of Defense MIL-STD-810F, technical specifications and performance data on file with the Office of Hazardous Materials Special Permits and Approvals. The cylinder has a design operational life of 30 years. The cylinder is equipped with a pressure relief device set to relieve at 5,800 psig, maximum. The cylinder must conform to the following:

Working pressure	5,150 psig maximum
Proof test pressure	9,900 psig minimum
Design Burst pressure	13,195 psig minimum

b. TESTING - Each cylinder must be pressurized to an internal pressure of at least the proof test pressure and held for at least thirty seconds. Evidence of leakage, visible distortion, or other defect shall be cause for rejection.

c. OPERATIONAL CONTROLS - The cylinder must be shipped enclosed within the F-35 Joint Strike Fighter Weapons Pylon or in a strong outside packaging in accordance with § 173.301(a)(9).

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Transportation of cylinders authorized under this special permit is only authorized as part of a military weapons or defense initiative system.

d. Each cylinder must be plainly and durably marked "DOT-SP 14400" as specified in § 172.301(c). Additionally, each outside packaging must be marked "INSIDE CONTAINERS COMPLY WITH DOT-SP 14400".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel, and cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft, or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: C.W. Freeman